SPC/ 2026 Energy & Transport Ministers Meeting

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THE PACIFIC COMMUNITY

**SIXTH PACIFIC REGIONAL ENERGY AND TRANSPORT MINISTERS' MEETING**

Port Moresby, Papua New Guinea, 4 – 8 May 2026

**POMF STRATEGY 3 – HARMONISE MARITIME GOVERNANCE AND POLICY**

# TD 08 – NATIONAL DIRECTIVE TO IMPLEMENT IMO INSTRUMENTS IMPLEMENTATION (III CODE) STRATEGY IN THE REGION

[SUBMITTED BY PAPUA NEW GUINEA]

**Discussion Paper**

## Purpose

1. The purpose of this paper is to seek the Transport Ministers' endorsement for PICTs to develop and implement the IMO Instrument Implementation (III Code) Strategy.

## Background

2. In the SMART-C Leaders Workshop in Fiji from 12-14 November 2024, the IMO called for the Pacific Island countries to address the finding of the IMSAS Audit as well as the other IMO obligations which the countries have ratified. The training was aimed at ensuring the maritime states were aware of their obligations under IMO conventions to fulfil them.

3. Public officials from 11 Pacific Island Countries attended the workshop and the most pressing issues and challenges affecting the effective implementation of IMO's most crucial conventions were discussed. The event was organized by IMO in partnership with the Pacific Community (SPC) and supported by the SMART-C leaders project funded by the Republic of Korea. This includes compliance with the IMO Instruments Implementation Code (III Code), which covers the implementation and enforcement of international conventions on maritime safety, environmental protection, and seafarer training, among others.

## Context the HOM/ Minister need to understand the issue.

4. Under the IMO Member State Audit Scheme (IMSAS), countries are periodically assessed on how effectively they are implementing IMO Instruments. Following these Audits, Corrective Action Plans (CAPs) are developed to address the findings to strengthen compliance initiatives.

5. The workshop assisted Pacific Island States (SIDS) in addressing the common findings from their IMSAS audits to support effective implementation of IMO Instruments. Most of these findings are from requirements under Port State Control, Flag State Implementation, and Maritime Legislation.

6. Participating countries include: Cook Islands, Fiji, Nauru, Palau, Papua New Guinea, Samoa, the Solomon Islands, Tonga, Tuvalu, and Vanuatu.

7. The workshop allowed the PICTs to promote regional co-operation in implementing IMO Instruments, while exploring how the SMART-C leaders Project could further strengthen maritime governance frameworks.

8. It was during the meeting that a call for each country to issue a National Directive for the Implementation of IMO Instrument Implementation (III) Strategy was made by IMO for each country to develop prior to their 2nd round of IMSAS Audit.

**Current status**

9. PNG has partially completed its 1st Cycle of audit, and it is using the 2016 Audit Findings to prepare for its 2nd Cycle of Audit, which is scheduled in October 2027. PNG is currently formulating documents to advise its government to issue a National Directive for the Implementation of the III Strategy. The National Maritime Safety Authority of PNG is currently developing its III Strategy.

10. In preparation for the 2027 audit, the PNG Maritime Administration is building is capacity through training provided by IMO including the SMART-C program on leadership. A program co-sponsored by the Government of South Korea.

**Progress of International Instruments Ratifications**

11. Papua New Guinea has ratified 16 instruments, and the Maritime Administration is currently preparing a submission for another 11 to be accepted by the Government of Papua New Guinea, followed by another 12 thereafter. Instruments ratified include:
    - SOLAS Convention 74, MARPOL 73/78(Annex I/II, Annex III, Annex IV, V), LOADLINES convention 66, COLREG Convention 66, SAR Convention 79, and STCW 2010 Amendments, London Convention 72, Intervention Convention 69, CLC Protocol92, Fund Protocol 92, Tonnage Convention 69, IMO Convention 48

**Issues**

12. Factors affecting the closure of IMO IMSAS Audit:

***Policy implications***

13. Inter-agency Coordination was an issue affecting the effective implementation of IMO Mandatory Instruments. This is because most of the agencies in PNG are governed by their own Act of Parliament and report to a separate portfolio minister. This makes it very difficult to coordinate effectively in a systematic way to implement the Port, Flag, and Coastal State Obligations.

14. PNG Port, Flag and Coastal State agencies in PNG have no legal and administrative arrangements in place to coordinate, implement and report the outcome of the IMSAS Audit. This is a challenge causing the delay in addressing all of the 2016 IMO IMSAS Audit in PNG.

***International relations implications***

15. Issuing a National Directive by PICTs demonstrates the collective resolve each state is making in the region to honor their international commitments in implementing IMO specific obligations.

***Operational implications***

16. Each state has a Sovereign duty to ensure they implement and maintains its international obligations for the safety of Maritime Trade and international shipping. The III Strategy is therefore the guiding document to ensure that each state's mandatory functions are implemented to their “Administration Satisfaction”.

***Risks***

17. The III Strategy allows a country to effectively align its state agencies to coordinate in implementing their IMO responsibilities. Part 3 of the IMO III Code specifically requires that a country must produce an Overall Strategy. Outcome of not developing an III Strategy includes:

- Not passing the IMO IMSAS Audit, not able to fully and completely implement the mandatory requirements of IMO III Code, potential safety/environmental incidents, regulatory & Safety and Compliance Gaps, reduced Oversight by Flag, Port, and Coastal State Control and reputational damage.

***Commitment to be made by the Ministers***

18. This paper therefore asks the Ministers to make a commitment of the recommendations set forth hereunder.

19. **Benefits of Issuing a National Directive:**

- A state can pass the IMO IMSAS Audit. A state can be able to implement the mandatory requirements of IMO III Code fully and to the "satisfaction of the administration". A state can prevent potential safety/environmental incidents**.** A state can effectively address its regulatory & safety and compliance gaps**.** A state can have an effective oversight program for its by Flag, Port and Coastal State activities. A state can promote its reputation as an active member of IMO within the region**.**

***Alignment with the National maritime strategy or international commitments***

20. The directive to implement the III Strategy aligns with the IMO Strategic Direction 2024 -2029, the 2050 Blue Pacific Strategy, the POMF 2026 – 2050 Framework, PNG Oceans Policy, PNG Medium Term Development Plan (MTDP IV), and PNG Maritime Administration's mandated function for safe, clean, secure, and sustainable Shipping**.** The paper fulfils the IMO objective of *"putting the Mandatory Instruments into practice in the Pacific".*

***Expected outcomes and timelines***

21. Upon endorsement of this paper, each PICT is expected to take the following action;

- Do a National Stakeholder consultation to develop their III Strategy;
- Seek their government endorsement for the issuance of a National Directive for the implementation of the III Strategy;
- Launch and implement their III Strategy; and
- Monitor, evaluate, and report to IMO the outcome of the III Strategy Implementation.

**Recommendations**

22. The meeting is invited to:

i. **take note** of their state's responsibility to honour their obligation as an IMO member in implementing the IMO Mandatory Instruments;

ii. **acknowledge** the Importance of the III Strategy in fulfilling their IMO obligation for a Safe, Clean, and Sustainable Shipping;

iii. **endorse** that all PICTs are to develop their III Strategy for the Implementation of IMO Mandatory Instruments as required for in the III Code; and

iv. **endorse** that all PICTs are to consult with their Transport Authorities and Government to issue a National Directive for the Implementation of IMO III strategy.

19 March 2026